

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 833

BY EDUCATION COMMITTEE

AN ACT

RELATING TO EDUCATION; AMENDING CHAPTER 16, TITLE 33, IDAHO CODE, BY THE
ADDITION OF A NEW SECTION 33-1639, IDAHO CODE, TO REQUIRE PUBLIC SCHOOLS
TO PROVIDE DAILY RECESS FOR STUDENTS IN KINDERGARTEN THROUGH GRADE FIVE
AND TO ENCOURAGE SCHOOLS TO PROVIDE UNSTRUCTURED ACTIVITY BREAKS FOR
STUDENTS IN GRADES SIX THROUGH EIGHT; AND DECLARING AN EMERGENCY AND
PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 16, Title 33, Idaho Code, be, and the same is
hereby amended by the addition thereto of a NEW SECTION, to be known and des-
ignated as Section 33-1639, Idaho Code, and to read as follows:

33-1639. DAILY RECESS AND UNSTRUCTURED ACTIVITY. (1) Each school dis-
trict, specially chartered district, and public charter school shall provide
to students in kindergarten through grade 5 a period of daily recess out-
doors, guaranteeing every student time to move, play, and grow. At least one
(1) recess period shall occur daily and outdoors and shall be for not less
than twenty (20) minutes, weather and scheduling permitting. If weather
does not permit students to be outdoors, then daily recess shall be accom-
modated indoors, such as in a gymnasium. Daily recess provided pursuant to
this section shall not be withheld for any disciplinary purposes, unless the
cause for discipline occurred during a recess period.

(2) Each school district, specially chartered district, and public char-
ter school is encouraged to provide to students in grades 6 through 8 daily
unstructured activity breaks.

SECTION 2. An emergency existing therefor, which emergency is hereby
declared to exist, this act shall be in full force and effect on and after
July 1, 2026.